Court No. - 32

Case :- WRIT - C No. - 17915 of 2025

Petitioner :- Panchsheel Hynish Apartment Owners Association And Another
Respondent :- State Of U.P. And 5 Others
Counsel for Petitioner :- Gautam Baghel,Om Prakash Singh
Counsel for Respondent :- C.S.C.,Sanjeev Kumar Pandey

With

Case :- WRIT - C No. - 19634 of 2025

Petitioner :- Sandeep Sharma And 17 Others
Respondent :- State Of U.P. And 5 Others
Counsel for Petitioner :- Utkarsh Singh
Counsel for Respondent :- C.S.C.,Sanjeev Kumar Pandey

Hon'ble Chandra Dhari Singh,J.

1. Counter affidavit filed by the learned counsel appearing on behalf of respondent nos.4 to 6 during the course of arguments, is taken on record.

2. In both the writ petitions same impugned order i.e. 15.05.2025 has been challenged, therefore, the same are hereby decided by a common order.

3. The instant writ petition has been filed seeking the following main prayers:-

> *"I. to, issue writ order or direction in the nature of certiorari quashing the impugned order dated 15.05.2025 (Anex.8 No.Page Nos.63) passed by Respondent No.2 Deputy Registrar, Firms, Societies and Chits, Ghaziabad vide which he has discarded the petitioners' election dated 22.03.2025 and has proceeded under Section 25(2) of the Societies Registration Act, 1860.*
>
> *II. to issue writ order or direction in the nature of mandamus directing and commanding the respondent no.2 Deputy Registrar, Firms, Societies and Chits, Ghaziabad to recognize the petitioners' election dated 22.03.2025."*

4. Sri Gautam Baghel, learned counsel appearing on behalf of the petitioners submitted that the impugned order dated 15.05.2025 is passed with mala fide intention and contrary to law. It is submitted that respondent no.2 i.e. Deputy Registrar, Firms, Societies and Chits, Ghaziabad has exceeded his jurisdiction while passing the order impugned as in case there is any dispute with respect to the casting of votes or the voter list then the remedy lies under Section 25(1) of the Societies Registration Act, 1860 (hereinafter referred to as the Act, 1860). It is submitted that elections were strictly held as per Clause- 8, 10, 15, 16 and 17 of the

bye-laws. It is further submitted that in the impugned order, the only reason given for discarding the election that the committee, which was constituted for holding the election vide GBM dated 12.03.2025 in which the decision has been taken by the GBM by way of raising the hands not by the secret procedure. It is vehemently submitted that there are no such provision in bye-laws that there are any requirement to constitute a Committee by GBM by way of casting of votes by secret ballot. It is submitted that the business of the GBM was conducted as per the provision of bye-laws. It is submitted that in pursuance of the decision of the GBM dated 12.03.2025, the election has already been held on 22.03.2025. The Deputy Registrar has declared the said election invalid, without jurisdiction and contrary to statutory provision.

5. Sri Baghel, learned counsel appearing on behalf of the petitioners further submitted that in the said election 500 voters were casted the votes and only 12 independent members have raised complaints without any substantial reasons and grounds, therefore, in absence of any substantial material, grounds, the result of the election cannot be discarded by the Deputy Registrar without reaching on the conclusion that there are any fraud and fabrication committed by the Committee. It is also submitted that any dispute in respect of holding election, the remedy lies before the prescribed authority. The order impugned passed under Section 25(2) of the Act, 1860 by the Deputy Registrar is without jurisdiction. It is also vehemently submitted that the Committee of Management is not time barred, inasmuch as not only fresh elections were held but were also submitted before Deputy Registrar, Firms, Societies and Chits, Ghaziabad before proceedings were initiated under Section 25(2) of the Act, 1860, therefore, the entire proceedings before the Deputy Registrar under Section 25(2) of the Act, 1860 was contrary to the provision against the established law and without application of mind.

6. Sri Baghel, learned counsel appearing on behalf of the petitioners submitted that in view of the above facts and circumstance, the order impugned is bad in law, arbitrary, without jurisdiction and the same is deserved to be set aside.

7. Per contra, Sri Sanjeev Kumar Pandey, learned counsel appearing on behalf of the respondent nos.4 to 6 vehemently opposed the instant writ petition and submitted that the Deputy Registrar has all the power to take a decision under Section 25(2) of the Act, 1860 for holding a fresh election when he has satisfied that there are any fraud or fabrication committed by the management. In support of his argument, he has placed reliance on the judgment passed by this Court in case of ***Committee of Management, Naldeo Kuldeo Purva Madhyamik Vidyalaya Belaon, District Jaunpur and another Versus Assistant Registrar, Firms, Societies and Chits, Azamgarh and another, [(1997) 2 UPLBEC 1009]*** and submitted that there are no illegality in the order impugned passed by the Deputy Registrar, if any material found to establish any forgery, perjury or fraud.

8. Heard learned counsel appearing on behalf of the petitioner, learned counsel appearing on behalf of respondent nos.4 to 6 and perused the avernments made in

the writ petition as well as materials on records and also averments made in the counter affidavit filed today.

9. For proper adjudicating the instant writ petition, I have to go both the provisions of Sections 25(1) and 25(2) of the Act, 1860, which are reproduced herein below:-

> *"25. Dispute regarding election of office-bearers.-(1) The prescribed authority may, on a reference made to it by the Registrar or by at least one-fourth of the members of a society registered in Uttar Pradesh, hear and decide in a summery manner any doubt or dispute in respect of the election or continuance in office of an office-bearers of such society, and may pass such orders in respect thereof as it deems fit:*
>
> *(2) Where by an order made under sub-section (1), an election is set aside or an office-bearer is held no longer entitled to continue in office or where the Registrar is satisfied that any election of office-bearers of a society has not been held within the time specified in the rules of that society, he may call a meeting of the general body of such society for electing such office-bearer or office-bearers, and such meeting shall be presided over and be conducted by the Registrar or by any officer auhtorised by him in this behalf, and the provisions in the rules of the society relating to meetings and elections shall apply to such meeting and election with necessary modifications."*

10. Learned counsel appearing on behalf of the petitioners has also argued and referred Clause 8, 10, 15, 16 and 17 of the registered bye-laws during arguments, which are reproduced herein below:-

> ***8. Voting-***
>
> *Voting shall be on percentage basis, and the percentage of the vote to which the owner is entitled is the percentage assigned to the Dwelling unit or units in the Declaration.*
>
> ***10. Votes to be caste in person-***
>
> *Votes will be caste in person Except as otherwise provided resolution of the Association shall require approval by a majority of owners casting votes in person or proxy.*
>
> ***15. Notice of Meetings-***
>
> *It shall be the duty of the of the Secretary to mail or send noticeof each annual or special meeting, stating the purpose thereof as well as the time and place where it is to be held to each apartment owner at least two days but not more than seven days prior to such meetings. Notices of all such meetings shal be mailed or sent to the competent authority, or the registrar as the case may be.*
>
> ***16. Adjourned Meeting-***
>
> *If any meeting of owners cannot be held for want of quorum the owners who are present, may adjourn the meeting to a time not less thanforty-eight hours from the time to original meeting was called.If at such adjourned meeting also, no quorum is*

present, the owners present in person being not less than two shall form a quorum.

17. Order of Business-

The order of business at all meetings shall be as follows:

- *(a) Roll Call.*
- *(b) Proof of notice of meeting or waiver notice.*
- *(c) Reading minutes of the preceding meeting.*
- *(d) Reports of officers.*
- *(e) Reports of Competent Authority or any officer authorised by them.*
- *(f) Report of Committee.*
- *(g) Election of Board.*
- *(h) Unfinished business, if any.*
- *(i) New Business.*

11. I have perused the judgment passed by this Court in case of ***Committee of Management Naldeo Kuldeo Purva Madhyamik (supra)*** which has been relied upon by the counsel appearing on behalf of the respondent nos.4 to 6 for strengthening his argument, the relevant paragraphs of which are quoted below:-

> *"The only objection that was raised by the respondents was that Dharnidhar Singh was not a member of the Society. No where in the impugned order it was mentioned that any information with regard to holding of election was available before the Assistant Registrar. Despite several opportunity having it was mentioned in the said orders that no materials were produced. It has been pointed out that time was extended from time to time till 13th November 1996 to file objections to the election of Dharnidhar but no such objection was filed. Therefore, it was found that the only objection that was raised was as to whether Dharnidhar was a member or not, It was also held that no other election has been claimed except Dharnidhar and, therefore, the said election is not disputed. [Para 8]*
>
> *Therefore, apparently, on the face of the above facts, prima facie, it appears that the Assistant Registrar has found Dharnidhar as a member of the society and that except Dharnidhar no other has laid any claim with sufficient materials that there was any other elèction held either by Rama Shanker or by Ram Naresh Singh. The documents that have been produced do not show sufficient material to hold that any election was so held and that any intimation on the said application was eve, given before June 1996. [Para 9]*

In that view of the matter, there is no infirmity in the order passed the Assistant Registrar. Inasmuch as it was well within his jurisdiction to find out whether there is any material to bring the case within the ambit of Section 25 (1) of the Act and having found as such on the basis of material on record, there is no scope for interfering with the same. Nothing has been brought to the notice of this court to point out that the finding of the Assistant Registrar is otherwise perverse. [Para 11]

Be that as it may, the decision of the Assistant Registrar is definitely not final and is subject to challenge in a civil suit before the civil court before the Civil Court if the parties or any of them are aggrieved otherwise."

12. Now I have to consider the facts of the case in hand. The facts of this case reveals that the petitioner no.1 is Association of the residence owners of the flats of the Society at Greater Noida, Gautam Budh Nagar. The petitioner no.2- Vinod Negi is an elected President of the said Association and petitioners in connected Writ Petition No.19634 of 2025 are residents of the Society. The election result is appended as annexure-7 with the paper book. It is admitted fact that valid election of the society was held on 16.03.2024 and the managing body was duly registered under Section 4(1) of the Act, 1860 on 05.06.2024. The tenure of the said election was only one year and the said tenure was going to expire after one year i.e. 15.03.2025. The meeting was conveyed on 16.02.2025 for the purpose of holding election, which was proposed for 09.03.2025. It is also brought into notice that the resolution of the general body was convened on 16.02.2025 which has been interfered by the Deputy Registrar and passed an order on 07.03.2025 for direction of fresh proceeding. In compliance of the said order, the fresh notice for election was issued on 08.03.2025 for the purpose of holding general body meeting, as per directions of the respondent no.2 i.e. Deputy Registrar. The general body meeting was convened on 10.03.2025 but since quorum was not complete, therefore, the fresh notice was issued for holding meeting on the same day. Thereafter, general body meeting was convened on 12.03.2025, wherein election committee was constituted. The said committee has declared the election scheduled on 13.03.2025 and the date of election was fixed on 22.03.2025. The election was held on the date fixed by the Committee on 22.03.2025. The result has declared and the petitioner no.2- Vinod Negi has elected as a President then the proceedings were submitted in the office of the Deputy Registrar for approval. On that respondent no.4 has filed objection alongwith material. Taking into consideration the material and objection, the Deputy Registrar passed the order impugned.

13. I have perused the impugned order dated 15.05.2025, findings of which are quoted herein below:-

"निर्णय

उक्त वर्णित तथ्यों के आधार पर दिनांक *12.03.2025* को आहूत की गयी जीबीएम चुनाव समिति का गठन विधिवत मतदान न कराते हुये मात्र उपस्थित सदस्यो के द्वारा हाथ उठाकर की गई सहमति के आधार पर किया गया है जो कि विधिक न होकर भीडतंत्र के द्वारा किया गया चयन है। अतः अविधिकपूर्वक गठित चुनाव समिति के द्वारा किया गया निर्वाचन स्वतः दोषपूर्ण, अविधिक व

अमान्य है। पुनः मतदाता सूची व शेयर सर्टिफिकेट जारी करने के सम्बन्ध में संस्था द्वारा कोई स्पष्ट के संतोषजनक उत्तर नहीं दिया गया। नोटिस दिनांक *10.03.2025* में उल्लेख किया गया कि *Additionally, all attendence are requested to carry their share Certificate or any valid proof of ownership of the flat/unit for verification purposes. Only one owner per the flat will be allowed to enter the meeting area. The security officer will be stationed at teh entrance to verify the indentity of members before allowing them entry into the meeting hall etc*

तत्क्रम में यह स्पष्ट है कि कुछ निवासियों के ही शेयर सर्टिफिकेट जारी किये जाने व शेष निवासियों की सदस्यता के संदर्भ में कोई स्पष्ट नियम का अनुपालन संस्था द्वारा नहीं किया गया एवं उ०प्र० अपार्टमेन्ट एक्ट *2010/* आदर्श उपविधि *2011* के नियम-*04, 05,* तथा *08* की अवहेलना की गयी है।

उक्त के क्रम में अवगत कराना है कि संस्था का पिछला निर्वाचन दिनांक *16.03.2024* को सम्पन्न कराया गया था। पंजीकृत बाईलॉज के अनुसार कार्यकारिणी का कार्यकाल *01* वर्ष होने के कारण निर्वाचन दिनांक *15.03.2025* तक विधिमान्य था। अतः समय से विधिक निर्वाचन न करायें जाने के कारण वर्तमान में कार्यकारिणी कालातीत हो गयी है एवं कालातीत प्रबन्ध समिति का निर्वाचन सोसाइटीज रजिस्टेशन एक्ट *1860* की धारा-*25 (2)* के अन्तर्गत निर्वाचन कराने का क्षेत्राधिकार रजिस्ट्रार *(*अधोहस्ताक्षरी*)* में ही निहित है।

उपरोक्त स्थिति में सोसाइटीज रजिस्टेशन एक्ट *1860* की धारा-*25(2)* के अन्तर्गत निर्वाचन कराये जाने की घोषणा करते हुए एक्ट की धारा-*25 (2)* के अन्तर्गत जिलाधिकारी महोदय, जनपद-गौतमबुद्धनगर के आदेश संख्याः *3639/*एस०टी० -ए०डी०एम० */ 2023* दिनांक*: 13.12.2023* से गठित अधिकारियों के पैनल से जिला पिछड़ा वर्ग कल्याण अधिकारी, गौतमबुद्धनगर को निर्वाचन अधिकारी नामित किया जाता है। नामित निर्वाचन अधिकारी द्वारा पंजीकृत बाईलाज में उपबन्धित प्रविधानों के अनुसार संस्था की कार्यकारिणी का निर्वाचन एक माह के अन्दर सम्पन्न कराया जायेगा। निर्वाचन में प्रयोग होने वाली विविध सामग्रियों, सुविधाओं एवं वाहन इत्यादि की बाजार में प्रचलित दरों के व्यय के आधार पर प्रस्तावित दरो का निर्वाचन कार्यालय द्वारा अनुमोदित रेट चार्ट जारी किया गया है। अनुमोदित चार्ट मे दिये गये रेट के आधार पर निर्वाचन सम्बन्धी सामग्री एवं व्यय का निर्धारण करते हये सम्भावित व्यय से एसोसिएशन को अवगत करायें जिससे निर्वाचन सम्बन्धी व्यय संस्था द्वारा वहन किया जा सके। निर्वाचन सम्पन्न होने तक दैनिक व्यय के अतिरिक्त अन्य व्यय पर तत्काल प्रभाव से रोक लगायी जाती है तथा नवीन कार्यकारिणी के गठन होने तक कार्यरत प्रबन्धसमिति द्वार किसी भी प्रकार के नीतिगत निर्णय नहीं लिये जायें।

उपरोक्तानुसार प्रकरण निस्तारित किया जाता है।"

14. After considering the entire submissions as well as the provisions and the facts of the case, the issue before this Court is to decide as to whether the Deputy Registrar while passing the impugned order, on perusal of the material on record as submitted by the respondent no.4, that any fraud or fabrication was committed by the petitioners. Secondly, whether the Deputy Registrar had passed the impugned order without jurisdiction and without arriving at a conclusion that there was any material on record to establish any fraud or fabrication by the petitioners.

15. After perusing the entire order passed by the respondent no.2 under Section 25(2) of the Act, 1860, I find that the only consideration taken by the Deputy Registrar is to some violation of the procedure but certainly has not reaching on the conclusion or taking any finding regarding the requirement of provision under Section 25(2) for establishing any fraud or fabrication to enable the Registrar to pass order under Section 25(2) of the Act, 1860. If any procedure lapsed by any Committee for holding election or any objection raised by the respondent pointing

out the lapses on the part of the Committee regarding the procedure or violation of any terms and conditions of the bye-laws of the society, the said dispute shall be referred to the Prescribed Authority under Section 25(1) of the Act, 1860.

16. Taking into consideration of the entirety of the matter, I reach on the conclusion that the order passed by the Deputy Registrar without any jurisdiction, contrary to law and is liable to be set aside.

17. The impugned order dated 15.05.2025 passed by the respondent no.2 is hereby set aside.

18. Accordingly, both the writ petitions are **allowed** and the matters are remitted back to the Prescribed Authority to take a decision afresh, after hearing both the sides and also taking into consideration of aforementioned finding of the Court, expeditiously, preferably within a period of eight weeks from the date of receiving the certified copy of this order.

Order Date :- 1.8.2025
Radhika

(Chandra Dhari Singh,J.)

Digitally signed by :-
RADHIKA VISHWAKARMA
High Court of Judicature at Allahabad